

Moves and Countermoves: Countermovement Diffusion of State Constitutional Amendments

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Policy diffusion literature generally studies the adoption of similar policies across jurisdictions, but often overlooks how opposing policies or legal constraints may influence the enactment of rigid state constitutional amendments. The current study models the spread of state constitutional amendments designed to prevent future policy change. Using conditional event history analysis on all states from 1999 to 2011 the empirical models analyze the spread of same-sex marriage prohibitive amendments across the United States. Findings suggest that the nearby adoption of opposing policies encourage state legislatures to introduce prohibitive amendments. The regional diffusion effect suggests that policymakers “protect” their jurisdiction from nearby diffusion forces or seek electoral gains by symbolic protection by committing an already existing policy into the rigid state constitutional framework. Regional policy diffusion may, therefore, be explained by a countermovement mechanism unique to the state constitutional amendment process. This protective strategy among state legislatures and citizens may explain why many policy areas are frequently codified in state constitutions.

KEY WORDS: policy diffusion, same-sex marriage, countermovements

政策扩散文献通常研究不同管辖地所采纳的相似政策，却经常忽略对立的政策或法律约束可能会导致严格的州立法修正案的颁布。本研究分析了用以防止未来政策变化的州宪法修正案的扩散。通过对1999年到2011年间的各州进行条件事件史分析，实证模型研究了防止同性恋的修正案在全美的扩散。结果显示，临近的州采纳相反的政策会促使本州议员提出限制性修正案。这一地区间扩散的作用表明决策者“保护”他们的管辖权不被临近州的扩散推动力所干扰或通过将现有政策升级为严格的州宪法框架这个象征性保护来争取选举筹码。地区间政策扩散可能因此被独特存在于州立法修正案过程中的反向运动机制所解释。这一各州议员和民众的保护性策略可能解释为什么很多政策领域经常被州宪法所写到。

Introduction

Many scholars examine the spread of policies across space and time, a process known as policy diffusion. Often this work focuses on U.S. states, most likely due to the visibility of policy change and the relatively few units of analysis (50 states). Generally this horizontal diffusion scholarship focuses on homogeneous state statutes

(Graham, Shipan, & Volden, 2013) and may overlook policy change in opposite directions, policy change that may influence future events, or the institutional/legal elements of changes themselves. The current study explicitly examines the role of state constitutional amendments as a rigid *countermovement* mechanism to commit status quo policy and halt future policy change.

State constitutional amendment requirements vary across the states, but in every state amendment approval requirements are significantly higher than standard state legislation (Lupia, Krupnikov, Levine, Piston, & Von Hagen-Jamar, 2011). Requirements include citizen referenda (often by a super majority), legislative supermajority approval requirements, or legislative approval in two separate legislative sessions. Amendments to state constitutions can be introduced through legislative initiatives (LI) in every state, but 15 states also allow direct citizen initiatives (DCI) to begin the amendment process (Lupia et al., 2011). The incentive structure for the amendment, therefore, depends on the group responsible for its inclusion in the state policy agenda. Once amended, only an additional state constitutional amendment or action from the federal government¹ can reverse the policy. Constitutional amendments, therefore, “bind-the-hands” of all branches of state governments by eliminating future policymaking processes except a subsequent constitutional change and thus represent the most robust policy commitment available to state policymakers. After an amendment, a state is relatively immune from external diffusion forces and other internal determinants of policy change. States frequently codify policy through these rigid amendments. Estimates from 2006 posit that total number of state constitutional amendments exceed 15,000 (Tarr & Williams, 2006), yet the policy diffusion community often overlooks state constitutional amendments despite the fact that many policies considered through diffusion scholarship are frequently codified in constitutions (a notable exception is Fay & Wenger, 2016).

This study contributes to diffusion scholarship in three ways. First it focuses on a timely and salient issue across the United States—same-sex marriage—but extends previous knowledge by focusing on constitutional amendments as a *super*-legislative event that prevents future state policy change. Although diffusion of same-sex marriage bans have previously been examined by Haider-Markel in 2001² and Nicholson-Crotty in 2006,³ no study has explicitly examined the diffusion of constitutional amendments over the life of a state policy in the United States.⁴ Second, the models explicitly account for diffusion of policies in the same substantive area (i.e., lesbian, gay, bisexual-rights [LGB]), but in opposite directions (i.e., how progay policy diffusion may encourage antigay policy adoption), thereby illustrating a new mechanism of policy diffusion: the countermovement mechanism. Third, the models isolate constitutional events based on the stakeholders responsible for introducing amendments (legislatures versus citizens) thereby showing that different stakeholders are motivated by different internal and external factors. Specifically, findings suggest that legislatures commit policy when expecting external diffusion forces to influence future change in the opposite direction, but other stakeholders (i.e., citizens and interest groups) commit contemporaneous policy as a result of interest group pressure. This distinction between the state constitutional amendment and general legislative process has been largely understudied in previous diffusion scholarship,

and general political science literature with a few exceptions (e.g., Hammons, 1999). Ultimately, the findings suggest that policy diffusion occurs not only because of competition, learning, coercion, or socialization, but also as a defensive countermovement mechanism for policymakers, citizens, and other political actors to commit policy within their jurisdiction. A placebo test confirms that the defensive mechanism of policy diffusion must be within the same given policy arena. Given the diversity of policies codified in state constitutions, this new mechanism of policy diffusion has important implications for future state policy change and future policy diffusion scholarship.

Policy Diffusion and State Constitutional Amendments

Policy diffusion is defined as the “formal study of how ideas move from one jurisdiction to another” (Boushey, 2010, p. 3).⁵ Most scholars explain policy diffusion as incremental learning, competition, coercion, or socialization between governments that often occur through geographic proximity and result in common policy adoptions (Berry & Berry, 1990; Graham et al., 2013; Mintrom, 1997; Shipan & Volden, 2008, 2012; Walker, 1969). The literature often focuses on horizontal diffusion: how policy spreads across geographic space and time in similar governments (i.e., states or municipalities) (Graham et al., 2013). Horizontal diffusion scholars, therefore, frequently use state policy as a frame of reference in their analysis (e.g., Boehmke & Skinner, 2012; Gilardi, 2010; Haider-Markel, 2001; Mooney & Lee, 1999; Pacheco, 2012; Shipan & Volden, 2008, 2012; Volden, 2006), but commonly ignore the different legal mechanisms used to enact state policy.⁶ There is a general consensus in the literature that U.S. states often look to neighboring states to inform their own policy decisions thus encouraging or discouraging adoption of similar policies to one’s neighbor⁷ (Graham et al., 2013). State constitutional amendments allow further theoretical exploration of policy diffusion because amendments often occur before ultimate policy adoption by explicitly granting power to the state legislature to adopt a Fay & Wenger, 2016). Amendments could also implement policy themselves such as Alabama’s Amendment 74, which created a bond to fund Jefferson County’s sewer system and established the end date of that bond. In the case of same-sex marriage prohibitions, the constitutional amendments were commonly adopted after the policy already existed within the state through statute, thereby illustrating an adoption process that did not change the policy outcome only the mechanism of the policy.

Fay and Wenger (2016) show that the amendment and legislation adoption processes of state constitutional amendments are two distinct processes and should be examined as such. In their analysis, state lottery amendments *granted* future policymaking power whereas same-sex marriage amendments *limit* future policymaking power of the state government. Additionally, 27 of the 31 states adopting same-sex marriage amendments had existing statutes prohibiting same-sex marriage prior to the first legalization in 2004. The amendments themselves are, therefore, not designed to define marriage contemporaneously, but to protect that definition from

future change. An alternative explanation could be that other LGB-friendly policy adoptions mobilized policymakers to further protect the status quo marriage law by constitution codification. Constitutional ratification protects the policy from future legislatures and the state supreme court. State policymakers may also strategically use the constitutional amendment process to reintroduce an established policy into the public discourse in order to garner electoral support. Diffusion literature does suggest that state governments behave defensively—anticipating the policy adoptions of other states and the potential consequences of adoption within their own state. Such a strategy can be seen when a state adopts a lottery program quickly after a neighboring adoption to recoup the forgone revenue from citizens crossing borders to purchase lottery products (Baybeck, Berry, & Siegel, 2011). If state legislatures anticipate future pressure to adopt undesirable policies, then the diffusion of policy may increase the likelihood of protective mechanisms in the opposite direction (i.e., constitutionally prohibiting an anticipated policy).

The Case of Same-Sex Marriage Policy

Same-sex marriage policy has received a great deal of attention in political science literature as an actively evolving policy that appears to diffuse rapidly across the United States in recent years, first with same-sex marriage prohibitions, then with legalizations. Many scholars have attempted to understand why states have prohibited same-sex marriage within their jurisdiction through legislation (e.g., Haider-Markel, 2001; Smith, DeSantis, & Kassel, 2006), constitutional amendments (Lupia et al., 2011), or how the social conservative movement to prohibit same-sex marriage actually *encouraged* same-sex marriage legalization across the United States (Dorf & Tarrow, 2014). Four⁸ incentives emerge for same-sex marriage prohibitive amendments previously discussed in the literature: strategy to entice conservative voters to turnout in the 2004 presidential election (Smith et al., 2006), anticipatory countermovement among social conservatives (Dorf & Tarrow, 2014), reaction to the *Goodridge* case legalizing same-sex marriage in Massachusetts (Klarman, 2012), and the institutional constraints of the constitutions themselves (Lupia et al., 2011). The implication of all four incentives is clear: a rapid spread of prohibitive constitutional amendments across the United States. Two of the four, however, fail to explain why many amendments occurred prior to and after 2004 (the year *Goodridge* took effect and the presidential election), while the other two fail to explain why these amendments occurred in most states that already prohibited same-sex marriage through statute. A casual glance of Table 1 that lists the prohibitive amendments of same-sex marriage in each state demonstrates that regional diffusion might have some influence on the timing of prohibitive amendments across the states.

In the past, same-sex marriage policy has been particularly contentious, including the legislation outlawing same-sex marriage first appearing in Utah in 1995 and the subsequent Defense of Marriage Act (DOMA) on the federal level in 1996. DOMA provided that no state was required to recognize marriage between two persons of the same sex even if the marriage was performed in a state that allows such

Table 1. State Same-Sex Marriage Amendments

State	Amend. Req.	Year of Amend.	Amend. Method
<i>Pacific</i>			
Hawaii	Any year	1998	LI
Alaska	General election years	1998	LI
Oregon	Any year	2004	DCI
California	Any year	2008	DCI
Washington	General election years	n/a	n/a
<i>W. North Central</i>			
Nebraska	General election years	2000	DCI
Missouri	Any year	2004	LI
Kansas	Any year	2005	LI
North Dakota	Any year	2006	DCI
South Dakota	Any year	2006	LI
Iowa	General election years	n/a	n/a
Minnesota	General election years	n/a	n/a
<i>Mountain</i>			
Nevada	Any year	2002	DCI
Utah	General election years	2004	LI
Montana	General election years	2004	DCI
Colorado	General election years	2006	DCI
Idaho	General election years	2006	LI
Arizona	General election years	2008	LI
New Mexico	Any year	n/a	n/a
Wyoming	General election years	n/a	n/a
<i>South Atlantic</i>			
Georgia	Any year	2004	LI
Virginia	Any year	2006	LI
South Carolina	General election years	2006	LI
Florida	Any year	2008	DCI
North Carolina	Any year	2012	LI
District of Columbia	n/a	n/a	n/a
Delaware	Any year	n/a	n/a
Maryland	Any year	n/a	n/a
West Virginia	Any year	n/a	n/a
<i>W. South Central</i>			
Louisiana	Any year	2004	LI
Arkansas	General election years	2004	DCI
Oklahoma	General election years	2004	LI
Texas	Any year	2005	LI
<i>E. North Central</i>			
Michigan	Any year	2004	DCI
Ohio	Any year	2004	DCI
Wisconsin	General election years	2006	LI
Illinois	General election years	n/a	n/a
Indiana	General election years	n/a	n/a
<i>E. South Central</i>			
Mississippi	Any year	2004	LI
Kentucky	General election years	2004	LI
Alabama	Any year	2006	LI
Tennessee	Year after general election year	2006	LI
<i>New England</i>			
Massachusetts	Any year	n/a	n/a
Connecticut	Only even numbered years	n/a	n/a
Vermont	General election years	n/a	n/a
New Hampshire	Any year	n/a	n/a
Maine	Any year	n/a	n/a
Rhode Island	General election years	n/a	n/a
<i>Mid-Atlantic</i>			
New York	Any year	n/a	n/a
New Jersey	General election years	n/a	n/a
Pennsylvania	General election years	n/a	n/a

unions. The law also defined marriage at the federal level as a union between one man and one woman (Klarman, 2012). Recent events have shown how the national zeitgeist has moved away from the cultural values of DOMA. The Supreme Court repealed DOMA with the *U.S. v. Windsor* (2013) decision arguing that Section 3 of DOMA violated the due process clause of the Fifth Amendment. After the *U.S. v. Windsor* decision, many other federal judges ruled that state constitutional bans against same-sex marriage also violated the federal constitution.⁹ Ultimately in the summer of 2015, same-sex marriage was legalized in all 50 states by the *Obergefell v. Hodges* decision, thereby nullifying all state constitutional bans of same-sex marriage.

Prior to *Obergefell* state judges have also influenced same-sex marriage policy across the United States. In 2003 Massachusetts's supreme court became the first to legalize same-sex marriage in *Goodridge v. Department of Health*. In the 2004 presidential general election 13 states amended their state constitutions to explicitly prohibit same-sex marriage although 40 states already had state DOMA statutes (Williams, 2004). Many proponents of these amendments claimed the constitutional changes were adopted in response to the Massachusetts' *Goodridge* case to protect against legalization within one's own jurisdiction from activist judges (Williams, 2004), but others claim the amendments were products of presidential politics designed by political strategists to draw out conservative voters. A potential vote on same-sex marriage was believed to encourage voters to the polls more so than the presidential vote because voters may be more passionate about a social issue such as marriage than casting support for a presidential candidate (Smith et al., 2006). This political strategy explanation may hold for the 19 percent of states amended in 2004 through a direct citizen initiative (DCI), but this seems less plausible for the 81 percent states in which the legislature initiated the constitutional amendment process or if the state did not amend in 2004. Lupia et al. (2011) argue that state constitutional amendments stemming from DCI are largely a function the preferences of the state citizens, although DCIs are typically initiated by political elites. These authors find that states with DCI are more likely to amend the constitution to prevent same-sex marriage because the amendment requirements are lower than in states requiring legislative initiatives (LI). Institutional constraints therefore also limit the plausibility of the presidential election hypothesis.

The states that amend constitutions to prohibit same-sex marriage often share borders with each other suggesting that regional diffusion may explain some of the amendments across the states. Of course this correlation does not equal causation, but every state with a same-sex marriage constitutional prohibition shares a border with another state that also prohibits same-sex marriage constitutionally. Previous research has suggested that state constitutional amendments could diffuse through a learning mechanism (Fay & Wenger, 2016), but policymakers may have incentives to prevent future policy change.

Theory and Hypotheses

Constitutions and Countermovements

Since many states adopted legislative bills prohibiting same-sex marriage in the late 1990s, the prohibitive amendments of the early 2000s were not innovative policy

ideas, but rather innovative *institutions* to commit policy, and, therefore, may diffuse in a unique pattern distinct from typical state policy. If amendments were to diffuse similar to typical legislation we would expect a state to be more likely to amend its constitution after learning of amendment decisions of other states (Fay & Wenger, 2016). If, on the contrary, amendments diffuse as a defensive institution to protect established policies a state should be more likely to amend its constitution based on the policy movement in the opposite direction in other states. A legislature may look to its neighbor and see a rising tide of pro-LGB policy, expecting the tide to spill into its own borders. This is similar to the positive externality example of spillover-induced competition discussed by Berry and Berry (2014), where government *A* may resist adopting a pollution abatement program, choosing instead to free-ride off neighboring government *B*'s previously adopted program. Government *A*'s policy choices are influenced by the positive benefits it receives from *B*'s policy decisions (Berry & Berry, 2014). By contrast, in the current context, state *A* may see the pro-LGB policy adoption of state *B* as producing negative costs in the form of momentum toward policy change in an undesirable direction. If pro-LGB policy violates state *A*'s legislature's political stance or collective personal preferences, then it may initiate an amendment to prevent other political actors (i.e., judges or future legislatures) from responding to these external diffusion forces coming from state *B*. It is, therefore, the adoption of *other* policies in the same substantive policy area that influence the likelihood of amendment—not the diffusion of amendments themselves.

It is important to understand why the legislatures may expect pro-LGB policy forces to extend into their own jurisdiction. Similar to the work of Mintrom and Vergari (1998), I expect external interstate networks of state legislatures to play an important role in the diffusion of these amendments. Conversations between state legislatures could influence the likelihood of prohibitive constitutional amendments in two ways. First a legislature that has not yet amended its constitution to prohibit same-sex marriage could learn about the potential gains and losses earned from a previous adopter. A standard diffusion mechanism would illustrate these external network effects. Legislatures may also learn of policy momentum in the opposite direction through these interstate conversations. The legislature could then anticipate future change within their own jurisdiction based on the changes among their regional peers. In order to halt the change, the legislature may initiate a preventative amendment.

The vast majority of states adopting prohibitive amendments had existing prohibitions for same-sex marriage adopted through statute. Policymakers, therefore, had no reason to codify the substantive policy issue in a rigid constitutional amendment unless they were doing so to protect against negative spillover effects (i.e., increased likelihood of change as a result of regional diffusion forces). When interviewed by the Associated Press Kansas Governor Kathleen Sebelius (Dem.) who opposed same-sex marriage, but also the 2005 constitutional amendment, said, "I don't think we need a constitutional amendment, and particularly a constitutional amendment that goes far beyond the bounds of [the existing statute]" (LaGorio, 2005). The amendment process does not change the status quo policy within a state, but rather reintroduces a salient, yet established policy issue allowing sitting

legislators to reap electoral gains and also protect against future policy change from other governmental actors and future legislative bodies. Legislatures should also have more institutional knowledge of the constitutional amendment process compared to the average citizen and, therefore, should be more likely to initiate the process in response to policy changes from nearby jurisdictions. Legislators that introduce prohibitive constitutional amendments in states that have existing statutory prohibitions are likely attempting to restore visibility of their policy preferences among their constituents for an established policy arena. Therefore, the more time that has passed since the adoption of the state DOMA, the more likely a legislator is to introduce an amendment to reap dormant electoral rewards.¹⁰

Researchers have acknowledged that momentum behind same-sex marriage prohibitions may have been inappropriately driven by progay policy change such as the *Lawrence v. Texas* decision that protected private sexual acts among consenting adults of the same sex (Culhane & Sobel, 2004). Hate-crime protections for LGB individuals were an extremely visible and salient policy issue in the late 1990s and early 2000s (Soule & Earl, 2001). In fact hate-crime protections that include sexual orientation have powerful spillover effects that may reduce incidences of hate crimes against LGBT citizens in states nearby the adopting state (Levy & Levy, 2017). I, therefore, hypothesize that preventative same-sex marriage constitutional amendments initiated by state legislatures will be a function of these legislative bills adopted among neighboring states. Although the public opinion landscape toward same-sex marriage has changed dramatically in recent years, many were fearful of widespread same-sex marriage adoptions in the early 2000s (Dorf & Tarrow, 2014; Klarman, 2012). Importantly, many of the early same-sex legalizations came from state judicial action and not from legislative or citizen action. A prohibitive constitutional amendment is the only policy strategy for legislatures to prevent state policy change from external actors.

An amendment that prevents a nonelected government institution¹¹ from making policy that contradicts public opinion should prove beneficial for legislatures in future elections. As one citizen, Dan Robinson, stated in response to judicial action in California in March of 2005 that temporarily legalized same-sex marriage “That’s precisely what I would like to see prevented here in Kansas” (Hanna, 2005). This perspective also illustrates that citizens and the interest groups that mobilize citizen action may have a national perspective of policy changes in a given area. Citizens initiated constitutional amendments may, therefore, be less subject to regional counter-movement diffusion forces. Whereas legislatures may rely on regional networks of diffusion of policy information, citizens and interest groups may respond to national trends of policy change.

Findings are somewhat mixed as to whether same-sex marriage policy is congruent or incongruent with public opinion (Kreitzer, Hamilton, & Tolbert, 2014; Lax & Phillips, 2009), which suggests the median voter strategy commonly used to assess policy diffusion may be inappropriate. Rather than assuming that policymakers attempt to understand the policy preferences of a median voter, public choice theorists (e.g., Glazer & Lohmann, 1999) assume that policymakers use policy commitment and/or flexibility to maximize reelection prospects. Constitutional

amendments represent an extreme form of policy commitment. Electorally secure legislators draw benefits from avoiding policy commitment because continual debate and discussion increases citizen awareness not only of the issue, but also the visibility of the legislators themselves. Once policymakers commit the issue to the legal framework of the state, they can no longer draw electoral benefits from discussing the issue. Glazer and Lohmann (1999) theorize about policy commitment in reference to simple statutes, but the incentives seem even more pronounced in the case of state constitutional amendments. For *legislatively initiated state constitutional amendments* legislators can draw a great deal of electoral rewards from introducing a constitutional amendment, thereby defining and discussing a particular issue space that may already be codified in the government. This is especially relevant in the case of same-sex marriage prohibitions because most states had existing legislative prohibitions when the amendment debate occurred. In many states the debate and discussion component of potential constitutional amendments can also extend to multiple legislative sessions, thereby further increasing visibility. Legislators may reap further rewards in the amendment process because ultimately the electorate votes on the issue during the constitutional referenda process.¹² A typical legislator can, therefore, maximize rewards by introducing or *reintroducing* an already established policy into the amendment process and extending the policy debate. A legislator can also minimize potential electoral *costs* through the amendment process because a commitment to the amendment can be framed as allowing the citizens to decide an important issue through a direct democracy process, should the amendment prove incongruent with public opinion. A legislator that previously advocated for LGB-rights could, therefore, reverse her position by voting for a prohibitive marriage amendment with minimal costs because ultimately the state electorate is the gatekeeper of the constitution (Ferraiolo, 2013). The negative geographic spillover from pro-LGB policy adoptions in neighboring states could, therefore, provide positive benefits for legislators that can then reintroduce the issue of same-sex marriage to its electorate and gain vote shares from renewed debate and discussion of a hot-button policy issue.

The motivations to support a proposed state constitutional amendment can vary by legislator based on electoral security. An electorally secure legislator expects to retain her office, but also to participate in future elections. A successful constitutional amendment could be used as future political capital to discuss how the incumbent legislator protected her constituents from external pressures to change policy in undesirable ways. Again, the expected negative spillover of policy momentum from diffusion forces can provide positive benefits to the strategic legislator that aims to prevent these forces.

Different incentives motivate electorally insecure legislators. Since the constitutional amendment process is substantially more difficult and lengthy than standard legislation, requiring multiple adoptions from multiple stakeholders often by super majorities, an electorally insecure legislator should avoid the amendment process because she will likely be unable to successfully amend the constitution in its desired direction. Electorally insecure legislators should instead quickly enact general legislation prior to turnover in an attempt to commit their own policy preferences rather than be subject to the policy preferences of future legislators (Glazer & Lohmann,

1999). Party turnover of the legislature in the past four years may indicate electoral insecurity. I, therefore, expect that legislatures that have recently seen a party turnover to be less likely to pursue amendments compared to legislatures that have not experienced a recent turnover. Electorally insecure legislatures may be more likely to pursue general legislation.

State legislatures are not the only political actors that can initiate the constitutional amendment process. Fifteen states allow citizens to place a potential constitutional amendment on the ballot. Although the legislature must vote to approve the potential amendment, special-interest groups that gather the necessary citizen signatures are largely responsible for these amendments because they can directly canvass citizens themselves (Lupia et al., 2011). It is also unlikely a legislature will directly shirk the revealed preferences from a citizen vote in these amendment processes (Lupia et al., 2011). These interest groups may have similar motivations to state legislatures (i.e., to protect against policy change from future legislatures and other policymakers), but also wish to protect against policy change from the *current* legislature. Since citizens are ultimately responsible for the adoption of these direct citizen initiatives the amendments should be a function of citizen preferences and the salience of same-sex marriage rather than diffusion. A defensive diffusion mechanism is also more likely to influence state legislators because (a) legislators should be more aware of potential negative spillover effects from pro-LGB policy momentum and (b) legislators can reap electoral rewards from identifying the potential policy change and reintroducing a salient policy issue if only to symbolically “protect” constituents from the negative spillover effects.

DCIs may be less subject to diffusion forces because interest groups and citizens mobilize more rapidly to amend a constitution in the wake of a changing policy landscape whereas legislators are slower to amend given the permanency of the decision and the vote shares gained from prolonging the debate. Because amendments can protect against policy change from future legislators we might also expect that DCI amendments occur directly after a party turnover in the state legislature. A citizenry that is displeased with the policy decisions of its legislature may choose to elect the opposing policy and then commit policy preferences through constitutional amendments while the desired legislature is in office. The control and stability of the legislature may influence the likelihood of constitutional amendments, but the institutional constraints of the constitutions themselves should also influence the timing of amendments.

An institutional constraint codified in many constitutions and often overlooked in diffusion scholarship and same-sex marriage policy analysis is that many state constitutions limit the years in which a state can amend its constitution to years in which there is a general election, years in which there is a governor election, or other specific years. In these situations, the likelihood of a state amending its constitution in years explicitly forbidden by the governing document itself is zero. Many states require amendments during a general election year because otherwise a state would have to spend resources on a special election for the amendment itself (Tarr & Williams, 2006). These restrictions are listed in Table 1, but have important implications for any diffusion analysis examining state constitutional amendments. Since a state

with a general election year requirement cannot amend in any other year, non-GE years should be excluded from the analysis. Conditioning the analysis on these years dramatically reduces the years a state can amend its constitution and, therefore, all internal and external (including diffusion) forces encouraging amendment will be more pronounced.¹³

These hypotheses ultimately contend that preventative constitutional amendments initiated by state legislatures may diffuse through a previously unexplored diffusion mechanism: defensive countermovement. In the context of same-sex marriage this means that as the proportion of neighboring states adopting LGB-specific hate crime legislation increases, so does the likelihood a state legislature amends its constitution to prevent same-sex marriage.

Data and Methods

Modeling Same-Sex Marriage Amendments

Previous studies of state policy diffusion (e.g., Baybeck et al., 2011; Berry & Berry, 1990; Boehmke, 2009; Caudill, Ford, & Kaserman, 1995; Erekson, Platt, Whistler, & Ziergert, 1999; Mintrom, 1997; Nicholson-Crotty, 2009) examine the internal social, political, and economic factors as well as the external diffusion factors that may influence a state to adopt an innovative policy. These studies, in general, argue that in addition to regional diffusion, many internal factors simultaneously influence policy adoption within a state including citizen preferences, election cycles, institutional constraints, and the political party in charge of the legislature at the time of adoption.

Beyond external regional diffusion and internal state-specific characteristics, timing plays a large role in explaining policy diffusion across the states because diffusion by definition is characterized by adopting similar policies across close geographic space and time. Empirically accounting for timing is especially important when modeling the diffusion of state constitutional amendments because the constitutions themselves limit the possible years that amendments can occur. Previous studies have examined the timing of policy adoptions using event history analysis (EHA), either through standard EHA (e.g., Makse & Volden, 2011) or through dyadic EHA (e.g., Boehmke, 2009). The current study relies on a conditional standard EHA estimation strategy because of the importance of geographic proximity in the countermovement diffusion hypothesis.¹⁴

Estimation Strategy

To estimate the internal and diffusion determinants of prohibitive amendments I construct two conditional EHA models. EHA essentially examines “the time until some kind of transition as the duration, and the transition, itself, as the event” (Greene, 2012, p. 861). This empirical strategy allows determinants whose values are both time variant and invariant, but also determinants whose *effects* are both time variant and invariant (Singer & Willett, 1993). My statistical analyses examine the entire population of continental U.S. states. I construct a dataset that consists of state-

year observations from 1999 to 2011 resulting in 650 individual state-year observations.¹⁵

Since diffusion research generally argues policies diffuse in an S-shape pattern (Boushey, 2010), the diffusion effect changes over time. EHA uses the proportion of a population (states) that survives through successive time periods (years) to refer to the survival probability. The survivor function is the chronological pattern of these probabilities over time (Singer & Willett, 1993, p. 4); because of this, careful controls for time are required else the estimates improperly ascribe changes in environment to adoption when, in fact, a “natural” diffusion due to learning is occurring.

I estimate the survival time (time until the event) process in several separate logistic regression models and thus assume that a log-logistic¹⁶ distribution applies to the error structure (parametric survival analysis) (Jenkins, 2005). I include the log-logistic baseline hazard because I am concerned with the effect that regional proximity has on the likelihood of amendment, not the typically S-shaped adoption pattern. Similar to previous models of policy diffusion (e.g., Berry & Berry, 1990), the cases are “state-years” thus representing pooled cross-section discrete time data. The events of interest (prohibitive amendment) are interval censored because I can only capture the year of the event. I, therefore, construct a logistic hazard model with interval-specific intercepts. This estimation technique is consistent with “an underlying continuous time model in which the within-interval durations follow a log-logistic distribution” (Jenkins, 2005, p. 43). Since controlling for time is essential to isolate special diffusion effects from often correlated time-dependent effects I also include year fixed effects.

Dependent Variables

The dependent variable A_{it} of the prohibitive amendment models is coded as zero from 1998 (the year that Hawaii and Alaska approved constitutional amendment prohibiting same-sex marriage) until the year state_{*i*} amends its constitution to prohibit same-sex marriage in year_{*t*}. In year_{*t*}, state_{*i*} is coded 1 and then excluded from all future years. The first model only analyzes those states without a DCI amendment mechanism to isolate legislative behavior. The second model includes all states, but also a binary indicator if the state allows DCI.¹⁷ This comparison will provide information regarding the different determinants of legislative initiated amendments and general state constitutional amendments.

In both models, a state is considered “at risk” in years that A_{it} is coded as “0.” As discussed above many states limit the years in which a constitutional amendment can be ratified. I, therefore, condition the models to exclude any year in which it is legally impossible (because of general election requirements) for a state to amend its constitution.

Variables of Interest

The variables of most concern to the current analysis are the same-sex policy decisions of neighboring states. Building upon the work of previous diffusion studies

(e.g., Berry & Berry, 1990; Makse & Volden, 2011) I rely on the proportion of states with a given policy in a state-year that share the border with the state of interest.¹⁸ This time-variant measure of regional diffusion, combined with the careful controls for time discussed below, should partial out the individual regional diffusion effect that is the focus of this analysis. Amendments prohibiting same-sex marriage were ratified mostly in the early 2000s, and no state that amended its constitution to prevent same-sex marriage shared a border with a state that previously legalized same-sex marriage. The diffusion measures for the prohibitive constitutional amendments are, therefore, the proportion of neighbors with constitutional prohibitions of same-sex marriage (diffusion of the policy mechanism itself) and the proportion of neighbors with hate-crime legislation that explicitly identifies and protects LGB individuals (diffusion of the pro-gay policies in the opposite direction). Hate crime protections were not only extremely visible during the same time as same-sex marriage amendments (Soule & Earl, 2001), but scholars also argue that these statutes themselves diffused because of pressure from nearby governments (Grattet, Jenness, & Curry, 1998). Hate crime statutes are, therefore, an ideal test of the countermovement diffusion mechanism. Diffusion studies relying on the proportion of neighboring states to capture diffusion effects generally include the total number of adoptions throughout the system of states to understand to socialization effect across all states (e.g., Makse & Volden, 2011). I, therefore, include the total number of amendments previously adopted in the system of the continental United States.

The constitutional amendment is the most rigid state policy mechanism. I am, therefore, concerned with the electoral security of the legislature committing that policy decision. I include an indicator variable of political party turnover in the legislature in each the previous five years. A constitutional amendment may also be desirable for a political party in control contemporaneously that may expect electoral loss in the future because the amendment prevents future policy change. Party turnover in the previous years may discourage the likelihood of a constitutional amendment because amendments often require several years of approval (i.e., legislative approval then referendum approval). Party turnover in the previous year could also be positively associated with the likelihood of an amendment if the newly elected legislature uses its windfall to amend the constitution and, therefore, provide a semipermanency of its policy preferences within the state. Including indicator variables of legislative party turnover for the previous five years allows understanding of the exact timing of the effect, but also allows the effect to be both positive and negative depending on the proximity to the amendment process.

Controls

I control for several state-specific factors that may influence the likelihood of prohibitive same-sex marriage amendments because they have been shown to influence the likelihood of other same-sex marriage policies. Lax and Phillips (2009) indicate that generally state policymakers are responsive to their constituents in terms of preferences for same-sex policies. I, therefore, include American National Election Studies

cumulative data that assesses citizen preferences from 1948 to 2012. It asks respondents to report a general thermometer toward gays and lesbians. The higher the value the “warmer” the feeling toward gays and lesbians. Since these are individual responses, I aggregated the values by state and created an average state level thermometer for each year in my period of analysis.¹⁹ Lax and Phillips (2009) also indicate that citizen and government ideology may influence same-sex marriage policy; I, therefore, include measures of citizen and state government ideology from Baybeck et al. (2011).

Since the policies of interest deal directly with marriage as an institution, I include Census measures for the state-level marriage rate for each individual state year. I expect that those states with higher marriage rates will be more likely to amend the constitution to prohibit same-sex marriage because amendments are often framed as protecting marriage as an institution (Klarman, 2012).

Other institutional characteristics may influence a state’s propensity to amend its constitution. Informed by the work of Lutz (1994) and Hammons (1999), I include age of the state constitution and the number of general policy provisions included in the original document. These values were collected from the appendix of the Hammons (1999) study and have not changed since no state has ratified a new constitution since 1999 and both values are only concerned with the *original* framing document. The age of the document should be positively related to the likelihood of amendment because older constitutions may be more fluid and adaptive to the ebbs and flows of policy over time (Lutz, 1994). A younger constitution suggests that the state may be more likely to adopt an entirely new constitution rather than amend as needed (Hammons, 1999). The number of policy provisions in the original document should also be positively related to the likelihood of amendment. A state with many policy provisions in the original state constitution suggests that the state views the constitutional framework as an appropriate venue to change policy (Hammons, 1999).

Nicholson-Crotty (2009) shows that policymakers often forgo policy learning through diffusion and quickly adopt policies that are highly salient and noncomplex. Lax and Phillips (2009) also argue that policymakers are more responsive to citizen preferences for highly salient policies such as same-sex marriage. I, therefore, include the number of *New York Times* articles from the previous year that reference “same-sex marriage” or “gay marriage.” This measure has been consistently shown to accurately capture policy salience (Nicholson-Crotty, 2009). Of course the number of national news stories varies over time, but I assume that every state is affected by the general saliency of the policy equally.

The final controls included in the models identify specific timing concerns in the likelihood of amendments. As discussed above I include a log-logistic baseline hazard, which is the natural log transformation of the year count that the state has been at risk of the amendment to control for the typical S-shaped pattern of policy diffusion. For both models this is the natural log transformation of the number of years since 1998, the year that Alaska and Hawaii amended their constitution to prohibit same-sex marriage. I also include a time-counter for the number of state years since the state adopted prohibitive legislation in order to further understand the timing of the amendment mechanism given that the status quo policy continued throughout

Table 2. Summary Statistics

	Mean	Std. Dev.	Min	Max
Legislature initiated prohibitive amendment	0.05	0.22	0.00	1.00
General prohibitive amendment	0.07	0.26	0.00	1.00
"Stand Your Ground" legislation	0.07	0.26	0.00	1.00
<i>NYTimes</i> articles mentioning gay-marriage (lagged one year) (in hundreds)	1.72	1.34	0.29	4.56
Proportion of neighbors with hate crime legislation	0.42	0.33	0.00	1.00
Proportion of neighbors with constitutional prohibition of gay marriage	0.20	0.30	0.00	1.00
Total number of hate crime statutes	23.55	8.89	4.00	30.00
Total number of prohibitive amendments	14.51	10.88	4.00	30.00
Average thermometer of gays/lesbians in state	54.59	6.46	0.00	78.50
Baseline hazard for bans	1.66	0.54	0.69	2.48
Number of years since current constitution was adopted (Hammons, 1999)	113.08	54.48	17.00	230.00
Number of policies in original constitution (Hammons, 1999)	27.99	14.61	4.00	73.00
Evangelical denominations—rates of adherence per 1,000 population	126.36	102.94	16.19	431.48
Time since prohibitive legislation	4.89	4.32	0.00	15.00
Contributions from the Human Rights Campaign	9.24	2.15	5.42	11.77
State citizen ideology (Baybeck et al., 2011)	54.16	16.33	8.45	95.97
State government ideology (Baybeck et al., 2011)	54.91	28.54	0.00	97.91
State marriage rate	7.64	3.73	4.00	72.20
Year of presidential election	0.31	0.46	0.00	1.00

the amendment process. This measure, therefore, conditions the likelihood of the amendment on the timing of the original prohibitive policy adoption within the state. Recent work on state constitutional amendment has shown that amendments and policy adoptions in the same policy area are distinct policy processes and should be modeled as such (Fay & Wenger, 2016). Additionally, I include a binary indicator for years of presidential elections, since prior evidence suggests many interest groups lobbied conservative voters to vote on same-sex marriage amendments (Smith et al., 2006). Finally, I include year fixed effects to control for any unobservables in each year that may be correlated with the likelihood of amendment. The summary statistics for all measures used are presented in Table 2.

Results and Discussion

I begin by assessing the relationship between progay policy adoptions in neighboring states and the likelihood of a state amending its constitution to prevent same-sex marriage: the countermovement diffusion hypotheses. Next, I move to the institutional constraints that influence the timing of state constitutional amendments. Finally, I discuss the internal social and political characteristics that influence the likelihood a state introduces and approves prohibitive same-sex marriage amendments.

Countermovement Diffusion

I present the average marginal effects from both logistic regression analyses of same-sex marriage amendments in Table 3. The first column presents the average

Table 3. Diffusion of Same-Sex Marriage Policy

	All Amendments	Legislative Initiatives
Prop. of neighbors with preventative amendments	−0.0040 (0.1287)	0.0618 (0.1356)
Prop. of neighbors with LGB-hate crime protections	0.1710* (0.1018)	0.2879*** (0.1109)
Total number of prohibitive amendments	0.0792 (0.0511)	0.0624 (0.0693)
<i>NYTimes</i> articles mentioning gay-marriage (general) (lagged one year)	0.4786* (0.2722)	0.5066 (0.4299)
State marriage rate	0.0079*** (0.0020)	0.0103*** (0.0021)
Party turnover of state legislature (no lag)	−0.0645 (0.0834)	−0.0545 (0.0679)
Party turnover of state legislature (one-year lag)	0.1311*** (0.0470)	0.0363 (0.0427)
Party turnover of state legislature (two-year lag)	0.0053 (0.0965)	0.1272 (0.0853)
Party turnover of state legislature (three-year lag)	−0.0976 (0.0790)	−0.0075 (0.0551)
Party turnover of state legislature (four-year lag)	0.1697*** (0.0595)	0.1151* (0.0696)
Legislative ideology–liberal	−0.0029** (0.0013)	−0.0025* (0.0015)
Legislative professionalism (Squire)	0.2719 (0.1980)	0.3275 (0.2837)
Average thermometer of gays/lesbians in state	−0.0420*** (0.0157)	−0.0437 (0.0272)
Evangelical denominations–rates of adherence per 1,000 population	−0.0001 (0.0004)	−0.0002 (0.0005)
Contributions from the Human Rights Campaign	0.3753** (0.1877)	0.4251 (0.3126)
Number of years since current constitution was adopted	−0.0007 (0.0007)	−0.0014** (0.0007)
Number of policies in original constitution	0.0015 (0.0030)	0.0001 (0.0027)
Direct citizen initiated prohibitive amendment	0.1180** (0.0515)	−0.0472 (0.0540)
Baseline hazard for bans	−2.2187 (1.3569)	−2.2045 (2.0145)
Time since prohibitive legislation	−0.0008 (0.0063)	0.0076 (0.0074)
Year of presidential election	−0.1393 (0.1148)	−0.3626** (0.1713)
Observations	161	151

Marginal effects; standard errors in parentheses.

Year fixed effects not shown.

* $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$.

marginal effects from the model examining only legislative initiatives, and the second presents the average marginal effects from general amendments. Both of the models were conditioned by the institutional constraints limiting the timing of constitutional amendments.

For both estimations, an increase in the proportion of neighbors with hate-crime legislation that protects LGB individuals is associated with an increased likelihood for an amendment prohibiting same-sex marriage. The effect sizes are 17.1 percent increase in likelihood per percentage increase in the proportion of neighboring hate-crime statutes in the general amendment model and 28.8 percent increase per percentage point increase in the proportion of neighboring statutes in the legislative initiated model. These relationships are especially important due to the lack of positive diffusion effects from neighbors with similar prohibitive constitutional amendments in both estimations. These findings suggest that same-sex marriage prohibitive amendments do not diffuse in a typical manner, which we might expect given the lack of diffusion patterns found for general legislation (Haider-Markel, 2001). However, this does suggest that state amendments decisions are dramatically influenced by the policy decisions of neighboring jurisdictions, but in the opposite direction, therefore providing support for the countermovement diffusion hypothesis.

The findings do not provide evidence of normative diffusion of prohibitive amendments. It would appear as if the U.S. states were not socialized into amending constitutions to prohibit same sex marriage. We do see a slight general socialization effect demonstrated by the positive relationship between the number of *New York Times* stories referencing same-sex marriage and the likelihood of general prohibitive amendments.

Party Turnover

Political party control of the legislature does appear to influence the likelihood of constitutional amendments and, therefore, state policy stability. As shown in Table 3, the timing of legislature party turnover is most likely to influence the likelihood of prohibitive amendments in the year directly following the turnover. For general amendments, a party turnover is associated with a 13.1 percent increase in the likelihood of an amendment in the year after the turnover. For legislative initiatives, a legislative turnover is not associated with a significant increase in the likelihood of an amendment. This positive relationship suggests that citizens or interest groups displeased with previous legislatures may take advantage of a party change and codify preferred policy preferences to protect the state from future legislatures.

Institutions

Findings suggest that, indeed, those states with higher marriage rates are in fact more likely to adopt prohibitive amendments. This is consistent with the rhetorical argument that amendments are necessary in order to “protect” the “traditional institution” of marriage by excluding same-sex couples and preventing future policy change (Klarman, 2012). In the LI amendment model as the state marriage rate increases by 1 percent, the likelihood of an LI amendment increases by 1.03 percent. For the general amendment model the effect size falls to 0.79 percent. Lupia et al. (2011) also suggest that states with direct citizen initiatives are more likely to amend the constitution to prohibit same-sex marriage. The current analysis also suggests that states with direct citizen initiatives are 11.8 percent more likely to amend the constitution to prevent same-sex marriage.

Another important institutional determinant of amendments is the timing of a presidential election. We see that the timing of presidential elections is not associated with legislative initiated amendments when conditioning on the constitutional constraints of the amendment process. In fact, we see that legislators may actually *avoid* presidential years to introduce constitutional amendments. A presidential election is related to a decrease in the likelihood of legislative initiatives by 36.2 percent. Legislators seeking to maximize the electoral gains from reintroducing a same-sex marriage ban may wish to do so in years which do not have a presidential election stealing the political spotlight. However, presidential elections occur in general election years and thus many states *require* a potential amendment to occur in the year of the presidential election rather than the year before or after. By accounting for this

legal requirement empirically, the association between the presidential election years and the likelihood of constitutional amendments disappears. It should also be noted that the models included year fixed effects to control for any unobservables that affected the likelihood of amendment among all states in a given year.

Other Determinants of Amendments

Certainly countermovement-diffusion forces alone cannot explain same-sex marriage amendments across the United States. Previous research has demonstrated that these policy issues are largely determined by public opinion (Lax & Phillips, 2009) and interest group activity (Haider-Markel, 2001). The current results demonstrate similar findings.

Public Opinion, Ideology, and Interest Groups

As shown in Table 3, public opinion favoring gays and lesbians decreases the likelihood of prohibitive amendments in the general model. This supports the previous findings of Lax and Phillips (2009) despite the limitations of the current measure of public opinion. Liberal government ideology, however, does show significant negative effects to the likelihood that a legislature introduces a prohibitive amendment, but also that any other policymaker introduces a prohibitive amendment.

Robustness

I conduct a placebo test for “Stand Your Ground” or self-defense laws adopted by state legislatures to test for spurious correlation between regional diffusion and adoption likelihood (Gilardi, 2016). That is, I examine the adoption of these statutes, as a function of geographic proximity to LGB-specific hate crime statutes when I expect that geographic proximity is unlikely to be an important determinant. “Stand Your Ground laws were first introduced by Florida in 2005 by the Protection of Persons/Use of Force Bill,²⁰ which “expanded an individual’s legal right to use force in self-defense, including deadly force, without fear of criminal or civil consequences” (Weaver, 2008, p. 395). Since Florida adopted this controversial legislation, 22 other states have adopted similar statutes, but no state has enshrined these policies in the constitutional framework. Geographic proximity to hate crime protections, therefore, should not influence the likelihood that a state adopts these protections. Table 4 presents the average marginal effects for the placebo model of Stand Your Ground laws with the same determinants included in the previous models of same-sex marriage preventative amendments.

As shown the proportion of neighbors with hate crime protections for LGB individuals has no significant relationship to the likelihood that a state adopts Stand Your Ground legislation. Party turnover in the state legislature, on the other hand, is positively related to the likelihood of a state legislature adopting a Stand Your Ground law in the year of the turnover and two, three, and four years after the

Table 4. "Stand Your Ground" Laws (Average Marginal Effects)

	Stand Your Ground Laws
Prop. of neighbors with preventative amendments	0.0185 (0.0561)
Prop. of neighbors with LGB-hate crime protections	-0.1775 (0.1156)
Total number of hate crime statutes	0.1981 (0.1763)
Total number of prohibitive amendments	-0.0727 (0.0955)
<i>NYTimes</i> articles mentioning gay-marriage (general) (lagged one year)	-0.5808 (0.4142)
State marriage rate	0.0041 (0.0078)
Party turnover of state legislature (no lag)	0.1037** (0.0417)
Party turnover of state legislature (one-year lag)	0.0000 (.)
Party turnover of state legislature (two-year lag)	0.1494*** (0.0496)
Party turnover of state legislature (three-year lag)	0.1669*** (0.0536)
Party turnover of state legislature (four-year lag)	0.2841*** (0.0422)
Legislative ideology-liberal	-0.0013** (0.0007)
Legislative professionalism (Squire)	-0.2215 (0.2693)
Average thermometer of gays/lesbians in state	-0.0122** (0.0060)
Evangelical denominations-rates of adherence per 1,000 population	0.0001 (0.0001)
Contributions from the Human Rights Campaign	-0.2639 (0.1674)
Number of years since current constitution was adopted	0.0013** (0.0006)
Number of policies in original constitution	0.0029*** (0.0011)
Baseline for castle law	0.3320 (0.3728)
Direct citizen initiated prohibitive amendment	-0.0640* (0.0361)
Time since prohibitive legislation	0.0272*** (0.0085)
Year of presidential election	0.0000 (.)
Observations	174

Marginal effects; standard errors in parentheses.

Year fixed effects not shown.

* $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$.

turnover. These results should be interpreted with caution, however, because this logistic regression does not include state level characteristics that should explain the adoption of Stand Your Ground laws, such as the number of gun owners within the state. This estimation does provide evidence that regional diffusion is not a result of spuriously correlated outcomes, but rather a defensive countermovement mechanism used by legislatures and other policymakers to protect states from opposing policy forces.

Conclusion

Horizontal policy diffusion scholarship has focused on the adoption of standard legislation within U.S. states, but has largely ignored whether these policies have been codified in the state constitution and, therefore, are less susceptible to policy change. The current study shows that legislators are influenced by other governments to include policy measures in the state constitution, but not through traditional policy diffusion mechanisms. Rather, the findings suggest that policymakers amend the constitution to prevent future policy change if nearby jurisdictions adopt antithetical policies—a countermovement mechanism of diffusion. This new measure of policy diffusion suggests that state legislatures view constitutional amendments as a substantive barrier to external diffusion of policies that may be undesirable to their constituents or their own preferences. Legislators may also use the amendment process to reintroduce dormant policy issues that could garner electoral gains. The

findings also suggest that other political actors (i.e., interest groups or citizens themselves) may use the state constitutional amendment process to protect against future legislative policy change.

Although this study focuses on state constitutional amendments that prohibit same-sex marriage within the states, the implications of the countermovement mechanism of policy diffusion extend to many different policy arenas. State legislatures may react to the diffusion of other policy adoptions that are spreading throughout the country. For instance, as states continue to innovate with marijuana policy, we may see other states react by formally forbidding the use of recreational marijuana through a constitutional amendment. This could also be the case with gun laws, land-use policy, and certainly fiscal policy, all of which have been codified in many state constitutions. Explicitly examining this countermovement of policy diffusion, operationalized through state constitutional amendments allows scholars to understand and predict not only contemporaneous policy change among the states, but also future policy change thereby addressing the myopic criticism of existing policy diffusion scholarship. We should expect limited policy change among state governments that have amended the constitution to include a given policy. In the current context, only one state (Oregon) reversed its constitutional prohibition of same-sex marriage before the *Obergefell v. Hodges* decision. Every other state policy change has come at the hands of federal judges *not* state policymakers.

This study improves existing understanding of horizontal policy diffusion, yet it is not without limitations. First and foremost, the study uses a quantitative approach to understand policymaker behavior. Future studies should examine the policymaker perspectives directly through systematic interviews to understand the relationship between electoral security, countermovement diffusion, and constitutional amendments. Since many state policies are codified in constitutions, it would be useful to extend the countermovement mechanism to other policy areas to understand if state legislatures use the constitutional amendment in areas outside of social policy. Diffusion researchers should, nonetheless, consider how the adoption of policies in an opposite direction might influence one's own policy decision. Researchers must also empirically consider, as I have shown here, that the institutional constraints of policy change mechanisms will influence the likelihood of change itself.

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Notes

1. Legislative bills, executive orders, and state judicial decisions are unable to reverse state constitutional amendments. Federal action has been the most common source of amendment reversal with 41 Federal Court decisions against state constitutional bans in 2013–2015.
2. Haider-Markel (2001) found that interest group forces rather than diffusion explained the spread of legislative prohibitions of same-sex marriage that occurred in the late 1990s and early 2000s.
3. Nicholson-Crotty (2006) is unable to test for regional diffusion due to the temporally proximate amendments in his sample.
4. The Supreme Court ruled that state constitutional bans of same-sex marriage violated the federal constitution in *Obergefell v. Hodges* (2015) and thus signal the end of the life cycle of state level bans.
5. For a complete review of policy diffusion literature refer to Graham et al. (2013).
6. Lupia et al. (2011) analyze different amendment mechanisms and how each may influence the likelihood of the amendment, but do not examine the role of diffusion in their analysis.
7. The diffusion effect can be multidirectional and nonlinear (Mooney, 2001).
8. Haider-Markel (2001) also suggests that interest groups were the driving force for prohibitive legislation, but did not analyze prohibitive amendments.
9. Robertson (2014).
10. Time since DOMA adoption may also increase the risk of introducing a constitutional amendment because public opinion on same-sex marriage may have shifted. Legislatures are relatively insulated from this risk, however, because the public must ultimately approve the amendment for constitutional codification.
11. State supreme court justices are appointed by governors in 27 states, 23 states conduct partisan or nonpartisan elections and the Commonwealth of Virginia provides for legislative election of supreme court justices.
12. All states except Delaware require that citizens approve the amendment provision. In some states such as Massachusetts and Connecticut, the legislature must approve the measure before and after the citizen vote in successive legislative sessions. In most states, amendments must be approved by a supermajority of the legislature (3/5 or 2/3) then the majority of the electorate.
13. It is important to note that this also limits the units of observation in the analysis, which is problematic, but unavoidable to provide and accurate empirical analysis.
14. A conditional dyadic EHA model is also available from the author. It produced similar results, but I report the standard EHA model to ease interpretation.
15. Alaska and Hawaii are typically excluded from regional diffusion analyses because neither shares a border with a contiguous U.S. state. However, since both led the country in same-sex marriage policy, they are included, but each is coded as having zero neighbors, but also drop out of analysis in the first year because both amended in 1999. The District of Columbia is excluded from these analyses because I am explicitly concerned with legislative action at the state level. Importantly, there are fewer than 650 observations in each of the models because once a state amends its constitution it is excluded from all future analysis. States are also only included in the analysis if the constitution allows amendments in a given year. It is important to note that the duration for many states is quite short (five years or less).
16. This is essentially an S-shaped time control.
17. Since there are only 15 states that allow the DCI, and these states were among the first to amend their constitution to prohibit same-sex marriage (Lupia et al., 2011), I wish to understand if these amendment mechanisms function differently than LIs in terms of diffusion. The few number of state-year observations prevent robust survival analysis on a model that only included DCIs, so I include all amendment types to isolate the unique determinants of LIs from the previous model.
18. Diffusion scholarship has advanced this as the typical “diffusion” measure since Berry and Berry’s seminal work in 1990. Some of these diffusion advances include the number of citizens near a border and the ratio of neighboring adoptions to total number of neighbors. Border population is

inappropriate in the current context because citizens are less likely to cross borders to take advantage of same-sex marriage policy compared to lottery purchases.

19. These data are not ideal, but they serve as a proxy to the policy specific attitudes measured by Lax and Phillips (2009).
20. LA. STAT. § 776.013 (2005), 33 FLA. ST. U. L. REV. 351, 351–53 (2005)

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Appendix

Table A1. Data Sources

Variable	Source
State constitutional amendment (DV)	Author created from individual state constitutions
Prop. of neighbors w/amendments	Author created from individual state constitutions
Prop. of neighbors w/hate crime protections	Author created from state legislation
National news stories—Same sex marriage	Author created from LexisNexis Search
Marriage rate	Census statistical abstract of the United States
"Stand Your Ground" Laws	National Conference of State Legislatures
Evangelical Christians	Association of Religion Data Archives
Professional legislature (Squire)	State Politics and Policy Quarterly (extended through 2009 using NCSL data)
Party turnover	State Politics and Policy Quarterly (extended through 2009 using NCSL data)
General election years	State Politics and Policy Quarterly (extended through 2009 using NCSL data)
Legislative ideology	Baybeck et al. (2011)
Average thermometer of gays/lesbians in state	American National Election Studies
No. policies in orig. constitution	Hammons (1999)
Current constitution age (years)	Hammons (1999)
Baseline hazard	Author created from individual state constitutions

All of the data are available for replication purposes from the author.